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Case Number: NAIH-186-2/2024
Subject: Partial Acceptance of Application
Previous Case Number: NAIH-2104/2023
Tax Decision
Case Officer:

DECISION

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) has initiated a data protection authority procedure regarding the violation of the right of access against [...] (hereinafter: Applicant) based on the application submitted to the Authority on January 26, 2023, against [...] (hereinafter: Respondent).

In the above data protection authority procedure, the Authority makes the following decisions:

The Authority

1. Partially accepts the Applicant's request and establishes that the Respondent did not provide adequate information to the Applicant, thereby violating Article 15(1) of Regulation (EU) 2016/679 (hereinafter: General Data Protection Regulation or GDPR) regarding the protection of natural persons in relation to the processing of personal data and the free movement of such data; in other respects, the Authority rejects the Applicant's request;
2. Orders the Respondent to provide information to the Applicant in accordance with the justification of this decision, in compliance with Article 15(1) of the General Data Protection Regulation.

The Respondent must provide evidence of compliance with the measure prescribed in point 2 within 30 days from the finality of this decision, in writing – simultaneously submitting supporting evidence – to the Authority. In case of non-compliance with the obligation under point 2, the Authority will order the enforcement of the decision.

There is no administrative remedy against this decision, but it can be challenged in an administrative lawsuit addressed to the Metropolitan Court within 30 days from the notification. The lawsuit must be submitted electronically to the Authority, which will forward it along with the case documents to the court. A request for a hearing must be indicated in the lawsuit. For those not fully exempt from personal fees, the administrative lawsuit fee is HUF 30,000, and the case is subject to the fee exemption right. Legal representation is mandatory in proceedings before the Metropolitan Court.

JUSTIFICATION

I.
Procedure Progress

(1)

The Applicant submitted a request to the Authority (NAIH-2104-1/2023) via the customer portal on January 27, 2023, stating that the Respondent violated their right of access, as they have not yet received a response to the access request sent by post to the Respondent on December 16, 2022. The Applicant

1 The form for initiating the administrative lawsuit is called NAIH_K01: NAIH_K01 form (2019.09.16)
The form can be filled out using the general form filling program (ÁNYK program).

The form is available at the following link: <https://www.naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>
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The Applicant attached a copy of the letter sent to the Respondent, as well as the postal receipt confirming the mailing of the letter, as an annex to their application.

(2)

The Applicant requested the Authority to establish the infringement concerning the Applicant's request to exercise their right of access, and furthermore, to oblige the Respondent to provide the Applicant with appropriate information regarding the personal data processed by the Respondent, in accordance with Article 15(1) of Regulation (EU) 2016/679 (hereinafter: "GDPR" or "General Data Protection Regulation") on the protection of individuals with regard to the processing of personal data and on the free movement of such data, as well as the repeal of Directive 95/46/EC.

(3)

In its decision NAIH-2104-2/2023, the Authority called upon the Respondent to provide information regarding the matters contained in the decision for the clarification of the facts.

(4)

In response to the Authority's call, the Respondent, in their statement submitted on March 7, 2023 (NAIH-2103-3/2023), stated that as a practicing lawyer, they are bound by the confidentiality obligation under Section 9 of Act LXXVIII of 2017 on the Legal Profession (hereinafter: Legal Profession Act). This confidentiality obligation is absolute and extends to all data related to the case. The Respondent referred to point d) of Article 14(5) of the General Data Protection Regulation, which states that there is no obligation to provide the data subject with information related to data processing if the personal data must remain confidential based on a professional secrecy obligation prescribed by EU law or national law – including confidentiality obligations based on legislation. The Respondent emphasized that the Applicant has never been their client but rather an opposing party. According to the Respondent's position, it follows from the above legal provision that they are not obliged to provide information to the Applicant, in other words, the Applicant does not have a right of access. For all these reasons, the Respondent believes that the Applicant's request is entirely unfounded.

(5)

The Respondent further stated that the Applicant's access request was received on December 19, 2022. The Respondent responded to the contents of the letter in a letter dated January 7, 2023; however, the letter was returned to them marked "not sought." Subsequently, the letter was also sent to the Applicant's email address.

(6)

The Respondent, citing their confidentiality obligation, did not provide a comprehensive answer regarding which personal data of the Applicant they process, for what purpose, and for how long. The Respondent indicated Articles 6(1)(c) and (f) of the General Data Protection Regulation as the legal basis for the processing of personal data, with the starting date for the processing of personal data being January 9, 2019.

(7)

Considering that the Respondent stated in their declaration in response to the Authority's call that after the unsuccessful postal delivery, they also sent the response to the Applicant's access request via email, but did not substantiate this claim with evidence, the Authority, in its decision NAIH-2104-4/2023, called upon the Respondent to send a copy of the email written to the Applicant after the unsuccessful postal delivery.

(8)

In their declaration received by the Authority on April 11, 2023, registered under case number NAIH-2104-5/2023, the Respondent stated that on November 29, 2022, the Applicant sent an electronic letter to them from the [...] email address, and in consideration of this, the Respondent also sent their response to the access request to the email address used by the Applicant. The Respondent attached a copy of the aforementioned email as an annex to their declaration.

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to prove that the letter was sent to the email address used by the Applicant, and in compliance with the Authority's request, also attached a copy of the email in which the response to the access request was sent to the Applicant following unsuccessful postal delivery.

(9)

On May 14, 2021, the Authority called upon the Applicant (NAIH-2104-6/2023 decision) and the Respondent (NAIH-2104-7/2023 decision) to make statements and observations in accordance with Section 76 of Act CL of 2016 on General Administrative Procedure (hereinafter: Ákr.) before the conclusion of the evidence.

(10)

In response to the Authority's call under Section 76 of the Ákr., after reviewing the documents, the Applicant submitted the following observations in their statement received by the Authority on May 2, 2023, under number 2104-12/2023:

i.

The Respondent, as a practicing lawyer, is bound by the confidentiality obligation according to Section 9 of the Legal Profession Act (Üttv.), however, this does not apply to personal data that must be disclosed with the consent of the data owner.

ii.

The Respondent incorrectly referred to point d) of paragraph 5 of Article 14 of the General Data Protection Regulation in this case.

iii.

In relation to legal activities, it does not matter whether the Applicant is an opposing party; the essence is whether the Respondent processes their personal data or not.

iv.

There was a civil lawsuit and numerous other cases where the Respondent processed the Applicant's personal data and did not provide information about it.

v.

The Respondent qualifies as a data controller under point 7 of Article 4 of the General Data Protection Regulation. The Applicant has the right to access the personal data processed by them.

vi.

The Applicant requested to consider as evidence that the postal item sent and referred to by the Respondent was sent to the wrong address and therefore could not be received. According to the Applicant, the Respondent knew the Applicant's address precisely, thus the incorrect sending implies the Respondent's bad faith.

vii.

The Respondent intentionally does not mention in relation to their income situation that their income from legal activities is not as much as their pension, but rather significantly more. In light of this, the Applicant requested the application of Section 64 of the Ákr. The Applicant referred to paragraph 2 of Section 64 of the Ákr.

(11)

In response to the Authority's call under Section 76 of the Ákr., after reviewing the documents, the Respondent submitted the following observations in their statement received by the Authority on May 10, 2023, under number 2104-14/2023:

i.

The Respondent maintained and reiterated their defense that Article 14, paragraph 5, point d) of the General Data Protection Regulation is applicable in this case, according to which the Applicant does not have a right of access, and therefore it cannot be violated.

ii.

The Respondent stated that as a lawyer, they are bound by a confidentiality obligation by law, thus Article 14, paragraph 5, point d) of the General Data Protection Regulation is applicable.

iii.

In light of the above, the Respondent's position is that there is a need to assert the principle that a lawyer does not have an obligation to inform the opposing party of the party they represent.

(12)

Considering that both the Applicant and the Respondent made further statements after exercising their right to review the documents, additional questions need to be clarified in the proceedings.

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became necessary, therefore the Authority requested further information from the Applicant regarding the circumstances of the data processing (NAIH-2104-15/2023 decision).

(13)

In response to the Authority's request, the Applicant presented the following (statement registered under NAIH-2104-16/2023).

(14)

Data concerning the Applicant appears in two cases, one in a civil litigation procedure and one related to a civil law claim procedure. Regarding the data processed in connection with the civil litigation procedure, the Applicant indicated Article 23(1)(j) of the GDPR in response to the Authority's request, while for the personal data processed in connection with the out-of-court procedure related to the civil law claim, the Applicant indicated Article 23(1)(i) and (j) of the GDPR. Concerning the legality of the data processing, the Applicant indicated points (c), (e), and (f) of Article 6(1) of the General Data Protection Regulation. The former procedure concluded on October 28, 2019, while the latter concluded on November 29, 2022.

(15)

The Applicant clarified the source of the Applicant's personal data in relation to the statements made in their previous declaration.

(16)

The Applicant also stated that, in their opinion, the documents containing the Applicant's personal data do not qualify as documents prepared for the purpose of defense under Section 13(3) of the Act on the Legal Status of Attorneys.

(17)

The Applicant again referred to Section 9(1) of the Act on the Legal Status of Attorneys, which states that all facts, information, and data known to the practitioner of legal activities during the exercise of such activities are considered attorney-client privilege. The Applicant stated that "the literature is unanimous that the emphasis is on the word 'all', therefore it does not matter whether the data or fact relates to the client or another party, even an opposing party."

(18)

In response to the Authority's request for the Applicant to justify why the following information regarding the Applicant is considered attorney-client privilege:

i.

the categories of personal data concerned;

ii.

the categories of recipients to whom the personal data has been disclosed or will be disclosed;

iii.

the planned duration of storage of the personal data, or if this is not possible, the criteria for determining this duration;

iv.

information regarding the right of the data subject to request the data controller to rectify, delete, or restrict the processing of personal data concerning them, and to object to such processing;

v.

information regarding the data subject's right to lodge a complaint with a supervisory authority;

vi.

the fact of automated decision-making mentioned in Article 22(1) and (4) of the General Data

Protection Regulation, including profiling, as well as at least in these cases, understandable information regarding the logic involved and the significance of such processing for the data subject, as well as the expected consequences for the data subject, the Applicant presented the following.

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(19)

In relation to point i. of paragraph (17), the Respondent stated that the Applicant's personal data must be treated as confidential facts and personal data, which the Respondent, as a lawyer, must handle unconditionally as a secret.

(20)

The Respondent further stated regarding point ii. of paragraph (17) that, in their opinion, it would be absurd for the defendant to be separately informed before the initiation of the proceedings that their data would be included in the statement of claim.

(21)

Regarding point iii. of paragraph (17), the Respondent stated that "in a litigation case, it is impossible to know how long it will last, and moreover, from a legal perspective, a litigation case is not necessarily concluded with a final judgment, as it is inherently linked to any potential court enforcement proceedings, the duration of which cannot be estimated in any way. On the other hand, the duration may be influenced by the minimum retention periods defined in the document management regulations."

(22)

Regarding point iv. of paragraph (17), the Respondent stated that "the question raised here is, in my opinion, not about the qualification of attorney-client privilege, but rather the question is whether the affected party – in our case, the opposing party of the lawyer's client – can exercise the right to request the correction or deletion of their data, or object to the processing of such data. I can only repeatedly refer to the fact that Article 14(5)(d) of the GDPR excludes the opposing party from exercising such rights. The opposite interpretation would lead to the completely impossible situation where the opposing party absurdly requests the deletion of their data, thereby thwarting the fundamental right of the client party: the enforcement of their legitimate claim. But we can also understand it as the result of weighing rights and legitimate interests: the legitimate interest – even if enforced through litigation – is stronger than the opposing party's interest in data processing."

(23)

Regarding point v. of paragraph (17), the Respondent stated that "the requirement for information regarding the right to complain is not, in itself, an attorney-client privilege, but it would nonetheless result in a completely untenable situation in practice. Assuming, without conceding: should the recipient or the defendant be informed before any demand (e.g., a lawyer's demand for payment of a loan or compensation) or before the initiation of civil proceedings (or during the proceedings?) that they can file a complaint against the data controller's professional legal representative? I believe that the enforcement of claims, as a legitimate interest, overrides the interest in information regarding the right to complain."

(24)

Regarding point vi. of paragraph (17), the Respondent stated that, in their opinion, automated decision-making and profiling cannot even arise in the situation of the present case.

(25)

The Respondent also repeatedly referred to Article 14(5) of the GDPR, which, in their view, contains a specific provision stating that the affected party does not have the right of access against the data controller bound by confidentiality, and according to Section 9 of the Act on Attorneys, the lawyer is a person bound by confidentiality. The Respondent further referred to the fact that since, according to Article 15(1)(e) of the GDPR, the affected party can not only request the deletion of data but can also demand it directly, the application of this provision completely prevents the enforcement of the client's

legitimate claim. In this comparison – according to the Respondent's view – the enforcement of the client's legal interest takes precedence over the affected party's right of access.

(26)

In response to the Applicant's reference that they could not receive the postal item because the address was incorrect, and alleging the sender's bad faith, the Respondent stated the following. The envelope containing the letter dated December 16, 2022, from the Applicant

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The Respondent submitted in the proceedings. The Applicant's address is also readable on the envelope as [...] -nek. The post returned the letter marked "not sought," rather than "addressee unknown," "moved," or "address not identifiable." Therefore, the Respondent sent their response electronically to the Applicant. Furthermore, in their litigation, the Applicant indicated completely different addresses in the year 2022 (once a [...], once a [...] address). To support this, the Respondent attached copies of the two envelopes as an appendix. The Respondent stated that in light of the above, their procedure was conducted in good faith.

(27)

The Respondent informed the Authority that, with the exception of the attorney's mandate and fact outline, the first-instance judgment, the court's corrective order, the court orders establishing the finality of the decisions, as well as the bank transaction slips regarding the defendant's financial performance and the payment made to the client, all documents in the litigation have been disposed of. The period for disposability in the out-of-court procedure has not expired.

(28)

On November 21, 2023, the Respondent submitted a request for access to documents to the Authority, which the Authority fulfilled with the resolution numbered NAIH-186-1/2024 and its appendices.

(29)

In the statement registered by the Authority under case number NAIH-2104-24/2023, the Applicant requested the Authority to consider several of its previous opinions when making its decision. Additionally, the Applicant also requested the Authority to inquire of the Respondent regarding the circumstances of the document disposal mentioned in paragraph (27) of the resolution numbered NAIH-2104-19/2023, and to take into account in its decision that the Respondent violated the provisions of the Act on the legal profession and the rules on the retention of documents related to the practice of legal activities, specifically the 16/2018. (XI.26.) MÜK regulation (hereinafter: MÜK regulation) with the referenced early document disposal.

II.

Legal provisions applicable in the case

(30)

According to Article 2(1) of the General Data Protection Regulation, the General Data Protection Regulation shall apply to the processing of personal data that is carried out in whole or in part by automated means, as well as to the processing of personal data that forms part of a filing system or is intended to form part of a filing system.

(31)

For data processing falling under the scope of the General Data Protection Regulation, the provisions of Act CXII of 2011 on the right to informational self-determination and freedom of information (hereinafter: Infotv.) shall apply with the supplements specified in the provisions therein, according to Section 2(2) of the Infotv.

(32)

According to Section 2(3) of the Infotv., for the processing of personal data for law enforcement, national security, and defense purposes, the Infotv. shall apply instead of the General Data Protection Regulation.

(33)

According to point 10a of Section 3 of the Infotv., "data processing for law enforcement purposes" refers to activities conducted by an authority aimed at preventing or eliminating threats to public order or public safety, crime prevention, crime detection, conducting criminal proceedings or participating in such proceedings, preventing and detecting administrative offenses, and conducting administrative offense proceedings or participating in such proceedings, as well as executing legal consequences established in criminal or administrative offense proceedings.

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the individual within the framework and for the purpose of this activity – including the handling of personal data related to this activity for archival, scientific, statistical, or historical purposes.

(34)

According to Section 60 (1) of the Infotv., in order to ensure the exercise of the right to the protection of personal data, the Authority shall initiate a data protection authority procedure at the request of the data subject and may also initiate a data protection authority procedure ex officio.

(35)

The provisions of the Ákr. must be applied for the conduct of the authority procedure according to Section 7 (1) of the Ákr.

(36)

According to Section 10 (1) of the Ákr., a client is a natural or legal person, or other organization whose rights or legitimate interests are directly affected by the case, for whom the authority's register contains data, or who has been subjected to authority control.

(37)

According to Section 35 (1) of the Ákr., the application is a statement by the client requesting the conduct of an authority procedure or the decision of the authority in order to enforce their rights or legitimate interests.

(38)

According to Article 2 (2) of the General Data Protection Regulation, the General Data Protection Regulation does not apply to the processing of personal data if it is carried out in the course of activities that fall outside the scope of EU law, or if it is carried out by Member States in the course of activities that fall under Title V, Chapter 2 of the TFEU, or if it is carried out by natural persons solely in the course of their personal or household activities, or if it is carried out by competent authorities for the purposes of preventing, investigating, detecting, prosecuting criminal offenses, or enforcing criminal sanctions, including the protection against and prevention of threats to public safety.

(39)

According to Article 2 (3) of the General Data Protection Regulation, the General Data Protection Regulation does not apply to the processing of personal data by EU institutions, bodies, offices, and agencies.

(40)

According to Article 4 (1) of the General Data Protection Regulation, "personal data" means any information relating to an identified or identifiable natural person ("data subject").

(41)

According to Article 4 (2) of the General Data Protection Regulation, "processing" means any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means.

(42)

According to Article 4 (7) of the General Data Protection Regulation, the data controller is the natural or legal person, public authority, agency, or any other body which determines the purposes and means of the processing of personal data, alone or jointly with others.

(43)

According to Article 12 (3) of the General Data Protection Regulation, the data controller shall provide the data subject with information on the measures taken in response to the request under Articles 15 to 22 without undue delay and in any event within one month of the receipt of the request. If necessary, taking into account the complexity of the request and the number of requests, this period may be extended by a further two months. The data controller shall inform the data subject of any extension of the deadline, together with the reasons for the delay, within one month of the receipt of the request. If the data subject

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If the application is submitted electronically, the information should be provided electronically whenever possible, unless the data subject requests otherwise.

(44)

The data controller is obliged to provide the information required under Article 14 of the General Data Protection Regulation to the data subjects if the personal data is not collected directly from the data subjects. According to Article 14(1) of the General Data Protection Regulation, if the personal data has not been obtained from the data subject, the data controller shall provide the data subject with the following information:

- a) the identity and contact details of the data controller and, if applicable, the data controller's representative;
- b) the contact details of the data protection officer, if applicable;
- c) the purpose of the intended processing of personal data and the legal basis for the processing;
- d) the categories of personal data concerned;
- e) the recipients or categories of recipients of the personal data, if any;
- f) where applicable, the fact that the data controller intends to transfer personal data to a recipient in a third country or to an international organization, as well as the existence or absence of an adequacy decision by the Commission, or in the case of transfers referred to in Article 46, Article 47, or the second subparagraph of Article 49(1), the identification of the appropriate and suitable safeguards, as well as a reference to the means of obtaining a copy of them or the means by which they are made available.

In addition to the information mentioned in paragraph (1), the data controller shall provide the data subject with the following additional information necessary to ensure fair and transparent processing of personal data:

- a) the retention period for the personal data, or, if that is not possible, the criteria used to determine that period;
- b) if the processing is based on point (f) of Article 6(1), the legitimate interests pursued by the data controller or a third party;
- c) the data subject's right to request from the data controller access to their personal data, the rectification of such data, the erasure of such data, or the restriction of processing, and to object to the processing of personal data, as well as the data subject's right to data portability;
- d) in the case of processing based on point (a) of Article 6(1) or point (a) of Article 9(2), the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;
- e) the right to lodge a complaint with a supervisory authority;
- f) the source of the personal data and, where applicable, whether the data originates from publicly accessible sources; and
- g) the fact of automated decision-making as referred to in Article 22(1) and (4), including profiling, as well as at least in those cases, meaningful information about the logic involved and the significance and the expected consequences of such processing for the data subject.

(45)

According to point (d) of paragraph (5) of Article 14 of the General Data Protection Regulation, the obligation under Article 14 does not apply if the personal data must remain confidential under a professional secrecy obligation laid down in Union or Member State law, including a statutory

obligation of secrecy.

(46)

According to paragraph (1) of Article 15 of the General Data Protection Regulation, the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed, and, if that is the case, access to the personal data and the following information:

a) the purposes of the processing;

b) the categories of personal data concerned;

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c) the categories of recipients or specific recipients to whom personal data has been disclosed or will be disclosed, including in particular recipients in third countries and international organizations;

d) where applicable, the intended duration for which the personal data will be stored, or, if that is not possible, the criteria used to determine that duration;

e) the right of the data subject to request the rectification, erasure, or restriction of processing of personal data concerning them from the data controller, and to object to the processing of such personal data;

f) the right to lodge a complaint with a supervisory authority;

g) if the data has not been collected from the data subject, all available information regarding its source;

h) the fact of automated decision-making referred to in Article 22(1) and (4), including profiling, as well as at least in those cases, understandable information on the logic involved and the significance and the expected consequences of such processing for the data subject.

(47)

According to Article 15(4) of the General Data Protection Regulation, the right to request a copy of personal data shall not adversely affect the rights and freedoms of others.

(48)

According to Article 16 of the General Data Protection Regulation, the data subject has the right to request the rectification of inaccurate personal data concerning them without undue delay by the data controller. Taking into account the purposes of the processing, the data subject has the right to request the completion of incomplete personal data, including by means of a supplementary statement.

(49)

According to Article 17(1) of the General Data Protection Regulation, the data subject has the right to request the erasure of personal data concerning them without undue delay by the data controller, and the data controller is obliged to erase personal data concerning the data subject without undue delay if one of the following grounds applies:

a) the personal data are no longer necessary for the purposes for which they were collected or otherwise processed;

b) the data subject withdraws their consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;

c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);

d) the personal data have been unlawfully processed;

e) the personal data must be erased for compliance with a legal obligation to which the data controller is subject under Union or Member State law;

f) the personal data were collected in relation to the offer of information society services referred to in Article 8(1).

According to paragraph (2), if the data controller has made the personal data public and is obliged to

erase it under paragraph (1), they shall take reasonable steps, taking into account available technology and the cost of implementation.

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technical measures - in order to inform the data controllers that the data subject has requested the deletion of links to the personal data in question or a copy or duplicate of such personal data from them.

According to paragraph (3), paragraphs (1) and (2) shall not apply if the data processing is necessary:

- a) for the exercise of the right to freedom of expression and information;
- b) for compliance with a legal obligation to which the data controller is subject under Union or Member State law, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- c) on grounds of public interest in the area of public health in accordance with Article 9(2)(h) and (i), as well as Article 9(3);
- d) for the purposes of public interest archiving in accordance with Article 89(1), for scientific and historical research purposes, or for statistical purposes, insofar as the right referred to in paragraph (1) is likely to render impossible or seriously jeopardize the achievement of that processing; or
- e) for the establishment, exercise, or defense of legal claims.

(50)

According to Article 21(1) of the General Data Protection Regulation, the data subject has the right to object at any time, on grounds relating to their particular situation, to the processing of personal data concerning them based on Article 6(1)(e) or (f), including profiling based on those provisions. In this case, the data controller shall no longer process the personal data unless the data controller demonstrates compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the data subject, or which are related to the establishment, exercise, or defense of legal claims.

According to paragraph (2), if the processing of personal data is for the purpose of direct marketing, the data subject has the right to object at any time to the processing of personal data concerning them for such marketing purposes, including profiling to the extent that it is related to such direct marketing.

According to paragraph (3), if the data subject objects to the processing of personal data for direct marketing purposes, the personal data shall no longer be processed for such purposes.

According to paragraph (4), the right referred to in paragraphs (1) and (2) must be explicitly brought to the attention of the data subject at the latest at the time of the first contact, and the information regarding this right must be presented clearly and separately from any other information.

According to paragraph (5), in relation to the provision of information society services and notwithstanding Directive 2002/58/EC, the data subject may also exercise the right to object using automated tools based on technical specifications.

According to paragraph (6), if the processing of personal data is carried out for scientific and historical research purposes or for statistical purposes in accordance with Article 89(1), the data subject has the right to object to the processing of personal data concerning them on grounds relating to their particular situation, unless the processing is necessary for the performance of a task carried out in the public interest.

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(51) According to Article 23(1) of the General Data Protection Regulation, Union or Member State law may restrict the scope of the rights and obligations laid down in Articles 12-22 and Article 34, as well as the provisions in accordance with the rights and obligations specified in Articles 12-22, with legislative measures applicable to the data controller or processor, provided that the restriction respects the essential content of fundamental rights and freedoms and is a necessary and proportionate measure in a democratic society for the protection of: a) national security; b) defense; c) public security; d) the prevention, investigation, detection, or prosecution of criminal offenses, or the

execution of criminal sanctions, including the protection against and prevention of threats to public security; e) other important objectives of general public interest of the Union or a Member State, particularly the important economic or financial interests of the Union or a Member State, including monetary, budgetary, and tax matters, public health, and social security; f) the independence of the judiciary and the protection of judicial proceedings; g) the prevention, investigation, detection, and prosecution of ethical violations in regulated professions; h) in the cases mentioned in points a)-e) and g) - whether on a case-by-case basis - activities related to the exercise of public authority, including monitoring, investigation, or regulatory activities; i) the protection of the data subject or the rights and freedoms of others; j) the enforcement of civil law claims.

(52) According to Article 55(3) of the General Data Protection Regulation, the powers of supervisory authorities do not extend to the oversight of data processing operations carried out by courts in the course of their judicial tasks.

(53) According to Article 58(2)(c) of the General Data Protection Regulation, the Authority instructs the data controller or processor to comply with the data subject's request to exercise rights under the General Data Protection Regulation.

(54) According to Article 77(1) of the General Data Protection Regulation, without prejudice to other administrative or judicial remedies, every data subject has the right to lodge a complaint with a supervisory authority – particularly in the Member State of their habitual residence, place of work, or the place of the alleged infringement – if the data subject believes that the processing of personal data concerning them infringes this Regulation.

(55) Based on Section 60(2) of the Information Act, a request for the initiation of a data protection authority procedure may be submitted in cases of data processing falling under the scope of the General Data Protection Regulation as specified in Article 77(1) of the General Data Protection Regulation.

(56) According to Section 61(1)(a) of the Information Act, in its decision made in the data protection authority procedure, the Authority may apply the legal consequences specified in the General Data Protection Regulation in connection with data processing operations defined in Section 2(2) of the Information Act.

(57) Based on Section 75/A of the Information Act, the Authority exercises the powers laid down in Articles 83(2)–(6) of the General Data Protection Regulation with regard to the principle of proportionality, particularly by addressing the first instance of non-compliance with the provisions regarding the processing of personal data – as defined in legislation or in a binding legal act of the European Union – primarily by warning the data controller or processor in accordance with Article 58 of the General Data Protection Regulation.

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(58)

According to Section 9 (1) of the Act on Attorneys (Üttv.), any fact, information, and data that the practitioner of legal activity becomes aware of during the exercise of this activity is considered attorney-client privilege.

(59)

According to Section 9 (2) of the Üttv., unless otherwise provided by the Üttv., the practitioner of legal activity is obliged to maintain attorney-client privilege. This obligation of confidentiality extends to documents or other data carriers containing attorney-client privilege.

(60)

According to Section 9 (3) of the Üttv., the practitioner of legal activity is obliged to refuse to testify about attorney-client privilege and to provide data in any authority and court proceedings, unless they have been exempted from the obligation of confidentiality by the person entitled to dispose of the attorney-client privilege, provided that – with the exception defined in Section 12 (4) – no valid exemption can be granted for testimony and data provision regarding attorney-client privilege known in

the capacity of defense counsel.

(61)

According to Section 9 (4) of the Üttv., the obligation of confidentiality of the practitioner of legal activity is independent of the existence of the legal relationship established for the exercise of legal activity, and it remains in effect indefinitely even after the termination of the exercise of legal activity or the cessation of the legal relationship.

(62)

According to Section 12 (1) of the Üttv., the client or their legal successor is entitled to dispose of the attorney-client privilege.

(63)

Based on the first sentence of Article Q) (3) of the Fundamental Law of Hungary, Hungary accepts the generally recognized rules of international law.

(64)

According to the 17th declaration attached to the closing statement of the intergovernmental conference adopting the Lisbon Treaty signed on December 13, 2007, "in accordance with the established case law of the Court of Justice of the European Union, the Treaties and the legal acts adopted by the Union based on the Treaties take precedence over the law of the Member States under the conditions established by that case law."

(65)

The Court of Justice of the European Union (currently: the Court of Justice of the European Union) confirmed the primacy of European Economic Community (EEC) law (currently: European Union (EU)) over the national laws of the Member States in its landmark ruling in the case of *Flaminio Costa v. E.N.E.L.* on July 15, 1964. The ruling establishes the general principle of community law (now: EU law), affirming that EU law takes precedence over the national law of Member States. The principle of primacy ensures that EU law uniformly protects citizens across the entire territory of the Union.

(66)

The consistent practice of the Court of Justice of the European Union [Judgment of December 4, 2018, C-378/17, paragraph 38] imposes the following obligation on national law enforcers, including courts and other state authorities:

"As the Court has stated on several occasions, the obligation to disapply national legislation that is contrary to EU law is not only incumbent upon national courts but also upon all state authorities that are called upon to apply EU law within the limits of their jurisdiction, including administrative authorities (see in this regard: Judgment of June 22, 1989, *Costanzo*, 103/88, EU:C:1989:256, paragraph 31; Judgment of September 9, 2003, *CIF*, C-198/01, EU:C:2003:430, paragraph 49; Judgment of January 12, 2010, *Petersen*, C-341/08, EU:C:2010:4, paragraph 80; Judgment of September 14, 2017, *The Trustees of the BT Pension Scheme*, C-628/15, EU:C:2017:687, paragraph 54).

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III.

Decision

1. The Primacy of EU Law

(67)

In its preliminary ruling regarding the EEC Treaty (now: the Treaty on European Union and the Treaty on the Functioning of the European Union), the Court clarified the following: (i) Unlike ordinary international treaties, the EEC Treaty established a European legal order that forms an integral part of the legal systems of the Member States and is binding on them. (ii) By establishing the EEC, the Member States transferred rights and obligations arising from the treaty from their national legal systems to the EEC legal system, limited their own sovereignty, and created a body of law that is binding on both their citizens and themselves. (iii) It follows that if the Member States were to adopt national legislation that contradicts EU law, they would be questioning the legal basis of the Union

itself. If they do so, EU law must take precedence over national law in the courts of the respective country (in other words, it must override it).

(68)

Subsequently, the Court clarified the scope of the principle of primacy in its case law (see the Court's judgment of July 15, 1964, in the case of *Flaminio Costa v. E.N.E.L.*, 6–64). The principle applies to all binding EU legal acts, including primary law (i.e., treaties), secondary law (directives, regulations, decisions, etc.), and the case law of the CJEU. It applies to all national legal acts, regardless of their nature (laws, regulations, decisions, circulars, etc.), or whether they were issued by the executive or legislative branch of the Member State; even if these legal acts were adopted after the relevant EU legal act (*Amministrazione delle Finanze v. Simmenthal SpA*, 1978); including provisions of national constitutions that are contrary to EU law (*Internationale Handelsgesellschaft mbH v. Einfuhr- und Vorratsstelle für Getreide und Futtermittel*, 1970 and *Wünsche Handelsgesellschaft v. Germany*, 1984, the so-called *Solange I* and *Solange II* judgments).

(69)

In the declaration attached to the closing statement of the intergovernmental conference that adopted the Treaty on the Functioning of the European Union, which concerns the primacy of EU law, the conference reminded of the principle that EU law takes precedence over national law and emphasized that this is one of the fundamental principles of EU law, despite the fact that it is not included in the treaty.

(70)

Moreover, the consistent practice of the Court of Justice of the European Union [judgment of December 4, 2018, C-378/17, paragraph 38] imposes the following obligation on national law enforcers, including courts and other state bodies, as well as the National Authority for Data Protection and Freedom of Information: “As the Court has stated on several occasions, the obligation to refrain from applying national laws that are contrary to EU law is not only incumbent upon national courts but also upon every state body that is called upon to apply EU law within the limits of its competence, including administrative authorities (see in this regard: judgment of June 22, 1989, *Costanzo*, 103/88, EU:C:1989:256, paragraph 31; judgment of September 9, 2003, *CIF*, C 198/01, EU:C:2003:430, paragraph 49; judgment of January 12, 2010, *Petersen*, C 341/08, EU:C:2010:4, paragraph 80; judgment of September 14, 2017, *The Trustees of the BT Pension Scheme*, C 628/15, EU:C:2017:687, paragraph 54).

(71)

In light of the above, if a conflict arises between the provisions of the Data Protection Act and the General Data Protection Regulation, this conflict is only apparent, as it is resolved by the principle of the primacy of EU law, which mandates the application of the General Data Protection Regulation against the provisions of national law – namely, the Data Protection Act.

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2. The Identity of the Data Controller

(72) According to Article 2(1) of the General Data Protection Regulation and Article 2(2) of the Information Act, the General Data Protection Regulation generally applies to the processing of personal data. National law may only deviate from the EU regulation to the extent defined in the EU regulation, and may only provide supplementary regulations in matters governed by the EU regulation to the extent permitted by the EU regulation.

(73) For data processing related to legal activities, none of the exceptions under Article 2(2) and Article 2(3) of the General Data Protection Regulation apply, thus the General Data Protection Regulation is applicable.

(74) Based on points 1, 2, and 7 of Article 4 of the General Data Protection Regulation, any operation performed by a lawyer on the personal data of another person is considered data processing, to which the General Data Protection Regulation and the provisions defined in Article 2(2) of the Information Act

apply.

(75) Article 55(3) of the General Data Protection Regulation excludes only courts from the Authority's jurisdiction, and only in relation to data processing operations carried out in the performance of their judicial duties. This does not affect the fact that the substantive legal rules of the General Data Protection Regulation also apply to courts, whether in the performance of their judicial duties or outside of them; however, regarding activities under Article 55(3) of the General Data Protection Regulation, it is not the Authority but the court that is entitled to examine them. Furthermore, the General Data Protection Regulation does not contain any other provisions that would limit the general jurisdiction of the Authority in terms of subject matter, nor does it provide for any deviation options for national law in this regard.

(76) The decision 22/1994 (IV 16.) AB stated that the legal profession is primarily related to activities connected to the administration of justice and the application of law. Participation as a defender or legal representative in the administration of justice is a constitutional requirement and a mandatory provision of procedural laws. The procedural status and situation of the lawyer (the legal representative) is regulated by law, and their procedural rights and obligations are also prescribed by law. Therefore, the activities and duties of the lawyer cannot be assessed and regulated in isolation, but only in relation to the procedural system within which their activities and duties are part of the system itself, and from which the specificity of the profession arises due to the division of labor within the system. The specificity of the profession thus arises from the system of administration of justice and application of law, beyond the fact that it is connected to the administration of justice and application of law. The rules governing the practice of the legal profession are norms of public law content or relevance.

(77) Based on the above, it can be established that lawyers generally perform data processing that falls under the scope of the General Data Protection Regulation, which is supervised by the Authority. The general rules are supplemented by specific regulations such as the Legal Aid Act; however, based on the above, these may only deviate from the General Data Protection Regulation to the extent permitted by EU law.

(78) According to Article 2(3) and point 10a of Article 3 of the Information Act, in criminal or administrative proceedings, data processing carried out as a participant based on legal provisions is governed not by the General Data Protection Regulation but by the provisions of the Information Act – the supervision of which is also carried out by the Authority – however, in the present case, such data processing does not exist concerning the Applicant and the Respondent.

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(79) The European Data Protection Board's guidance number 7/2020 regarding the concept of the data controller and the data processor under the General Data Protection Regulation specifically states the following example concerning the data processing by lawyers: During the legal activity, "in order to perform this task, the law firm must process personal data related to the case. The reason for processing personal data is the law firm's mandate to represent the client before the court. However, this mandate is not specifically aimed at the processing of personal data. The law firm acts significantly independently, for example, in deciding what information to use and how to utilize it, since the client company does not provide instructions regarding the processing of personal data. Therefore, the data processing carried out in the performance of the task as the legal representative of the company is related to the functional role of the law firm, thus it should be considered a data controller in this regard."

(80) The professional opinion number 1/2019 (IV.15.) issued by the Presidency of the Hungarian Bar Association also states that during the performance of the lawyer's activities, primarily from the perspective of the General Data Protection Regulation—unless otherwise arising from the agreement between the lawyer and the client or possibly other exceptional circumstances—the lawyer is considered an independent data controller, and not a data processor or joint data controller, as the purposes and means of the lawyer's data processing are primarily determined by the laws applicable

to lawyers and the rules of the Hungarian Bar Association.

(81) Regarding the determination of the data controller status, it is irrelevant whether the Applicant is the client of the Respondent or the opposing party. According to the above, when determining the data controller, the provisions of the General Data Protection Regulation, and not those of the Act on the Legal Profession, are applicable. The lawyer comes into possession of the personal data of the opposing party while performing their legal duties. According to Article 4(2) of the General Data Protection Regulation, any operation or set of operations performed on personal data or data sets, whether automated or not, such as collection, recording, organization, storage, retrieval, consultation, use, disclosure, erasure, is considered data processing.

(82) Based on the above, it can be established that the Respondent holds the status of an independent data controller concerning the examined data processing. Consequently, the Respondent is subject to the data processing obligations under the General Data Protection Regulation, including the proper assessment of data subject (access) requests.

3. The relationship between Article 14(5)(d) of the General Data Protection Regulation and the right of access under Article 15

(83) The Respondent stated that Article 14(5)(d) of the General Data Protection Regulation contains a specific provision stating that the data subject does not have the right of access against a data controller bound by confidentiality, and according to Section 9 of the Act on the Legal Profession, the lawyer is such a person bound by confidentiality.

(84) Considering that the Respondent does not differentiate between the right to prior information under Articles 13 and 14 of the GDPR and the right of access under Article 15 of the GDPR based on their statements, the Authority points out the differences between the two legal institutions and the differing regulations as follows.

(85) The General Data Protection Regulation prescribes two well-defined types of information obligations for data controllers.

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(86) The General Data Protection Regulation (GDPR) Articles 13 and 14 contain the rules regarding the obligation of preliminary, general information. Article 13 of the GDPR applies in cases where the source of personal data is the data subject. Article 14 of the GDPR applies in cases where the source of personal data is not the data subject. This right is independent of the request of the data subject and is granted to all data subjects.

(87) The right to information ensures that data subjects can learn about the circumstances related to the processing of their personal data, as well as the scope and consequences of the data processing at the time of the acquisition of personal data. That is, the right to appropriate information, as defined by Articles 13-14 of the GDPR, determines what preliminary, general information the data controller must provide to the data subject regarding the data processing carried out by the data controller. The right to appropriate information is a passive right, under which the data controller is obliged to provide information regarding data processing without a specific request, and this can be done by making the information publicly available. The examination of this general information typically occurs within the framework of the examination of the data controller's general data processing practices.

(88) In the present case, based on Article 14(5)(d) of the GDPR and Section 9(2) of the Act on Information, the Respondent did not have a preliminary, general information obligation towards the Applicant, and thus the Respondent could not have violated the provisions of the GDPR in this regard. However, the Applicant submitted an access request to the Respondent under Article 15(1) of the GDPR, which the Respondent did not fulfill, citing the obligation of attorney-client confidentiality. The passive right to appropriate information is complemented by the data subject's right of access under Article 15 of the GDPR, which serves the purpose of allowing the data subject, upon request, to receive information about the specific processing of their personal data for the purpose of lawful data processing and its verification. Consequently, the data subject must actively exercise the right of

access, and the data controller is obliged to provide more detailed and personalized information exclusively to the data subject.

(89) According to Article 15(1) of the GDPR, the data subject is entitled to request individual, targeted information from the data controller, which includes the following:

- (i) whether data processing is ongoing;
- (ii) access to the specific personal data being processed (information about the specific data, not just its categories);
- (iii) the circumstances listed in Article 15(1) of the GDPR (including the purpose of data processing and the legal basis related to that purpose, the categories of personal data, etc.).

(90) Regarding the right of access under Article 15 of the GDPR, the exception under Article 14(5)(d) of the GDPR does not apply, meaning that the Applicant is entitled to exercise their right of access even if the provisions regarding the right to preliminary information in the GDPR are not applicable due to the requirement for the personal data to remain confidential under a professional secrecy obligation prescribed by EU or Member State law, including confidentiality obligations based on legislation.

(91) The information under Article 15 of the GDPR must be provided by the data controller subsequently, at the explicit request of the data subject. Its limitation is, on the one hand, that the right to request a copy under Article 15(4) of the GDPR may not adversely affect the rights and freedoms of others, and on the other hand, Article 23 of the GDPR defines the limitations on the right of access.

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regarding restrictions. However, the Authority emphasizes again that the point d) of paragraph (5) of Article 14 indicated by the Applicant does not constitute a limitation on the right of access, considering that the referenced legal provision clearly applies the exception regarding the confidentiality obligation to paragraphs (1)-(4) of Article 14 of the General Data Protection Regulation and not to Article 15.

(92)

From the statements of the Applicant, it can be established that the Applicant does not distinguish between the right to prior information of the data subject and the right of access. For example, in its statement dated August 8, 2023, registered under NAIH-2104-16/2023, in response to the Authority's request for justification as to why the information to be provided under the right of access based on Article 15(1)(f) of the GDPR regarding the right to submit a complaint to a supervisory authority falls under attorney-client privilege, the Applicant stated the following: "The information regarding the right to complain is not attorney-client privilege in itself, but it would still create an impossible situation in practice. Assuming, but not conceding: should every demand (e.g., attorney's demand for payment of a loan or compensation) or the initiation of a civil lawsuit (or during the lawsuit?) inform the recipient or the defendant that they may file a complaint against the data controller's professional legal representative?"

(93)

Based on the above, contrary to the Applicant's position, the right of access does not mean that the data subject should be informed about their right to complain, among other things, before every data processing operation, but rather the right of access imposes an obligation to provide information with specific content upon the explicit request of the data subject.

4. The right of access of the data subject

(94)

Considering that, as stated above, the limitation set forth in Article 15 of the General Data Protection Regulation is not constituted by point d) of paragraph (5) of Article 14, the Authority examined the applicability of the two restrictive provisions existing in relation to Article 15 of the GDPR.

(95)

On the one hand, Article 23 of the General Data Protection Regulation defines restrictions regarding the right of access, and on the other hand, based on paragraph (4) of Article 15, the right to request a copy must not adversely affect the rights and freedoms of others.

(96)

The Authority examined whether the limitation of the provisions of Article 15 is necessary and proportionate for the protection of the interests listed in paragraph (1) of Article 23 of the GDPR.

(97)

In response to the Authority's request, the Applicant stated that, on the one hand, it processes data concerning the Applicant in relation to a civil lawsuit, and on the other hand, in relation to an out-of-court procedure concerning a civil claim. Regarding the data processed in connection with the litigation, the Applicant referred to point j) of paragraph (1) of Article 23 of the GDPR, i.e., the limitation is necessary for the enforcement of civil law claims. In relation to the out-of-court procedure concerning the civil claim, the Applicant indicated points i) and j) of paragraph (1) of Article 23 of the GDPR, i.e., the limitation is necessary for the protection of the client's rights and for the enforcement of civil law claims.

(98)

However, the limitation under paragraph (1) of Article 23 of the GDPR does not constitute a general limitation regarding Article 15 of the GDPR. Article 15 of the General Data Protection Regulation can be limited in the protection of the interests listed in paragraph (1) of Article 23 of the GDPR, to the extent that the limitation respects the essential content of fundamental rights and freedoms.

Consequently, the protection of personal data must be...

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is a fundamental right that a third party – the Respondent's client – cannot completely revoke from the Applicant, and according to Article 23 of the General Data Protection Regulation, the rights of data subjects can only be limited by national law in a proportionate and necessary manner, and cannot be rendered void. National regulations that contradict this cannot be applied.

(99)

Consequently, the Authority examined the extent to which Article 15 of the GDPR is applicable, taking into account the interests protected under points i) and j) of paragraph 1 of Article 23 of the GDPR, namely whether the Respondent's client has a specific legitimate interest in this case that would necessitate withholding information about which personal data (name, etc.) is being processed by a third party and for what purpose (etc.). Otherwise, an interpretation of the Data Protection Act that completely voids the rights under the General Data Protection Regulation would violate Article 23 of the General Data Protection Regulation. In this regard, the Authority points out that, as a public authority exercising public power and conducting data protection oversight, it cannot waive its claim to verify the legality of the processing of any information recorded in writing or electronically that relates to data processing in Hungary. Otherwise, a baseless reference point could be used to exempt data processing from the scope of laws protecting data, ultimately undermining the possibility of oversight. Such reasoning would clearly be associated with the potential weakening of personal data protection. The general data protection oversight and protective role guaranteed by the Fundamental Law of Hungary can only be limited through statutory rules.

(100) The Authority accepted the reference to attorney-client privilege under Section 9 (1) of the Respondent's Data Protection Act as a national limiting measure under Article 23 in relation to points b), c), and g) of paragraph 1 of Article 15 of the GDPR (namely, the categories of personal data concerned; the categories of recipients to whom the personal data have been or will be disclosed, including particularly recipients in third countries and international organizations; and all available information regarding the source of the data; if the data have not been collected from the data subject), as well as in relation to paragraphs (2) and (3). If, in a case, the acting attorney were to provide information about the above-mentioned – attorney-client privileged – information to the opposing party, as well as a copy of the data they manage, it could indeed affect the outcome of civil claims enforcement or other legal proceedings and could jeopardize the realization of the protected interests defined in paragraph 1 of Article 23 of the General Data Protection Regulation (thus particularly points f), i), and j) of paragraph 1 of Article 23). In this regard, the Authority holds that it is of no significance that the proceedings related to which the Respondent processed or is processing the Applicant's

personal data have already been concluded, considering that the rights and freedoms of the Respondent's client can still justify the limitation of the right of access under Article 15 of the GDPR. To enable attorneys' clients to effectively exercise their right to legal representation, it must be ensured that the data, facts, and information that have been disclosed to their appointed attorney or that the attorney has learned from others during the exercise of their activities remain confidential. The limitation of the Applicant's right of access as mentioned above was carried out in protection of the Respondent's client's interest under point i) of paragraph 1 of Article 23 of the GDPR.

(101) However, considering that the proceedings in which the Respondent processed the Applicant's personal data have already been concluded, the information to be provided regarding the purposes of data processing (Article 15 (1) (a) of the GDPR) does not fall within the scope of attorney-client privilege, as the Respondent independently determines the purpose of further processing of personal data related to the concluded proceedings, thus these are not pieces of information that the attorney learned during the exercise of their activities.

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(102) Regarding the further points of Article 15(1) of the GDPR, namely points d), e), f), and h), the reference to attorney-client privilege as a state-imposed restriction under Article 23 of the GDPR, as per Section 9(1) of the Üttv. (Act on the Legal Profession), cannot be accepted. Furthermore, the Respondent is also obliged to inform the Applicant whether their personal data is being processed. In this regard, the Authority points out that the Respondent itself stated (on page 3 of the declaration registered under NAIH-2104-16/2023) regarding the information on the possibility of rectification, erasure, or restriction of processing of the data subject's personal data under Article 15(1)(e) of the GDPR, that "the question raised here is, in my opinion, not a matter of classification as attorney-client privilege." Similarly, the Respondent stated regarding the information related to the right to lodge a complaint (Article 15(1)(f) of the GDPR): "the requirement for information regarding the right to lodge a complaint is not attorney-client privilege in itself."

(103) Despite the above statements, the Respondent completely denied the information to be provided to the Applicant within the framework of the right of access, citing attorney-client privilege.

(104) In light of the contents of the Respondent's declaration registered under NAIH-2104-16/2023 on page 3, the Authority points out the following regarding points d), e), f), and h) of Article 15(1) of the GDPR.

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According to point d) of Article 15(1) of the GDPR, the data subject has the right to be informed about the intended duration of the storage of personal data, or if that is not possible, the criteria for determining that duration. The Respondent stated in this regard that in a litigation case, it is not possible to know how long it will last, and moreover, from the lawyer's perspective, the case may not necessarily conclude with a final judgment. Additionally, minimum retention periods may also influence the duration. The Authority points out that under point d) of Article 15(1) of the GDPR, the data controller is obliged to provide information to the data subject not only when the final date of processing is known beforehand, but if such information is not possible, the data subject must be informed about the criteria for determining the duration.

-

According to point e) of Article 15(1) of the GDPR, the data subject has the right to be informed about their right to request the rectification, erasure, or restriction of processing of their personal data from the data controller, and to object to the processing of such personal data. The right to rectification is regulated by Article 16 of the GDPR, the right to erasure by Article 17, and the right to object by Article 21. Consequently, the data subject's rights to rectification, erasure, and objection must be interpreted within the framework of these legal provisions, and not without limits. The occurrence of the situation referred to by the Respondent, where the opposing party requests the erasure of their data, which hinders the enforcement of the legitimate claim of the instructing party, is excluded by point d) of Article 17(4) of the GDPR. Therefore, the Respondent should have adequately informed the Applicant about their rights to rectification, erasure, and objection under Articles 16, 17, and 21 of the GDPR, which

does not mean that the Respondent must always delete the Applicant's personal data without limits in the event of a potential erasure request.

-

According to point f) of Article 15(1) of the GDPR, the data subject has the right to be informed about their right to lodge a complaint with a supervisory authority. Contrary to the Respondent's assertion, this does not imply a prior information obligation on the part of the data controller, but rather, subsequently, upon the express request of the data subject, the data subject must be informed about the right to lodge a complaint within the framework of their right of access.

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According to point h) of Article 15(1) of the GDPR, the data subject must be informed about the fact of automated decision-making referred to in Articles 22(1) and (4) of the GDPR,

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including profiling, as well as understandable information regarding the logic employed and the significance of such data processing, and the expected consequences for the data subject in at least these cases.

(105) The above-mentioned points relate to the general operation of the lawyer and other technical information that the Applicant was unilaterally obliged to determine as the data controller before commencing data processing, even prior to establishing a mandate with the current specific client.

(106) Based on the above, the Authority found that the information provided by the Applicant to the Requester was inadequate, as instead of providing information in accordance with Article 15 a), d), e), f), and h) of the General Data Protection Regulation, the Applicant referred to the Requester's access request based on Article 14(5)(d) of the General Data Protection Regulation and Section 9 of the Act on Attorneys, citing the obligation of attorney-client confidentiality, and did not fulfill it.

(107) In light of the above, particularly considering that the exception under Article 14(5)(d) of the General Data Protection Regulation is not applicable regarding the right of access under Article 15 of the General Data Protection Regulation, the Authority established a violation of Article 15(1) of the General Data Protection Regulation and instructed the Applicant, based on Article 58(2)(c) of the General Data Protection Regulation, to respond to the Requester's data subject request regarding Articles 15(1)(a), (d), (e), (f), and (h) of the GDPR, as well as concerning the ongoing data processing.

(108) The Requester also complained that the Applicant did not respond to the access request sent to the Applicant on December 16, 2022, within the deadline set by the General Data Protection Regulation. The Authority found that the Applicant did send its response to the Requester within the deadline; however, the Requester had indicated the address as [...] instead of [...] which made it impossible to deliver the letter to the Requester. Subsequently, the Applicant sent its response via electronic mail to the Requester's verified email address on February 11, 2023. In light of all these circumstances, the Authority did not find a violation of Article 12(3) of the General Data Protection Regulation.

(109) Regarding the Requester's proposal to take into account previous positions, the Authority notes that it considers its previous case law and earlier decisions, as well as its legal interpretations, to the necessary extent when making all its decisions. However, this does not mean that the Authority is bound by its previous legal interpretations; its positions do not have absolute binding force, and the Authority must always interpret the laws in light of the specific facts of the case at hand, potentially allowing for the elaboration, clarification, and development of its legal stance. Consequently, based on the unique facts of the case, it may not always be possible to take into account what is stated in the Authority's previous decisions and positions.

(110) Regarding the Requester's request for clarification related to the disposal and the request to consider violations of the provisions of the Act on Attorneys and the Code of Conduct during the decision-making process, the Authority's position is that the examination of the document disposal referred to by the Applicant in this case, as well as the practice regarding the disposal of documents, does not fall within the scope of this data protection authority procedure. Furthermore, in accordance

with Section 38(2) of the Information Act, the Authority does not have the authority to...

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authority to investigate whether the Applicant has violated the non-data protection provisions of the Act on the Prohibition of Unfair Commercial Practices (Üttv.) and the Code of Conduct for Lawyers (MÜK).

5. The issue of procedural and data protection fines

(111) If the Authority establishes a violation in the data protection authority procedure, it may apply the legal consequences defined in the General Data Protection Regulation and the Information Act (Infotv.). These include data protection fines, which the Authority may decide on its own, based on the discretion provided in the General Data Protection Regulation, either independently or alongside other legal consequences.

(112) Regarding the question of whether the imposition of a data protection fine is justified, the Authority has, ex officio, assessed all circumstances of the case based on Article 83(2) of the General Data Protection Regulation and Section 75/A of the Infotv., and has determined that it is not necessary to impose a data protection fine in the present procedure. According to the Authority's assessment, remedying the infringement of the right to the protection of personal data is possible in this case without imposing a fine, by supplementing the information. This is also supported by the fact that the Authority has not yet established a data protection violation against the Applicant.

(113) The Authority further draws the Applicant's attention to the fact that more than five years have passed since the entry into force of the General Data Protection Regulation, thus – particularly from the perspective of those practicing legal activities – it is unacceptable that they do not know and do not apply the provisions of the General Data Protection Regulation, thereby completely refusing to fulfill the access request of the data subjects by citing attorney-client privilege. The Authority emphasizes that violations related to non-compliance with the provisions of the General Data Protection Regulation are still common among those practicing legal activities. The Authority points out that there is also a place for imposing fines in the data protection authority procedure, and in the event of similar violations uncovered in the future, it will consider imposing a data protection fine in light of Article 83 of the GDPR.

6. Other issues

(114) This decision is based on Sections 80-81 of the Administrative Procedure Act (Ákr.) and Section 61(1) of the Infotv. The decision becomes final upon communication in accordance with Section 82(1) of the Ákr. Pursuant to Section 112, Section 116(1), and Section 116(4)(d), as well as Section 114(1) of the Ákr., there is a right to legal remedy against the decision through administrative litigation.

(115) The Authority's jurisdiction is defined by Section 38(2) and (2a) of the Infotv., and its competence extends to the entire territory of Hungary.

* * *

(116) The rules of administrative litigation are defined by Act I of 2017 on Administrative Litigation (hereinafter: Kp.). According to Section 12(1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and the Metropolitan Court is exclusively competent for the case based on Section 13(3)(a)(aa) of the Kp.

(117) According to Section 27(1)(b) of the Kp., legal representation is mandatory in administrative litigation falling under the jurisdiction of the court. According to Section 39(6) of the Kp., unless otherwise provided by law, there is no suspensive effect on the enforcement of the administrative act upon the submission of the statement of claim. In accordance with Section 29(1) of the Kp. and considering Section 604 of Act CXXX of 2016 on Civil Procedure (hereinafter: Pp.), the client's legal representative is obliged to maintain electronic communication as per Section 9(1)(b) of Act CCXXII of 2015 on General Rules of Electronic Administration and Trust Services.

(118) The time and place for submitting the statement of claim are determined by Section 39(1) of the Kp. Information regarding the possibility of requesting a hearing in relation to the decision is based on

Sections 77(1)-(2) of the Kp.

(119) The amount of the administrative litigation fee is determined by Section 45/A(1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The party initiating the procedure is exempt from the advance payment of the fee under Section 59(1) and Section 62(1)(h) of the Itv.

(120) If the Applicant does not properly prove the fulfillment of the prescribed obligation, the Authority will consider that the obligation has not been fulfilled within the deadline. According to Section 132 of the Ákr., if the Applicant has not complied with the obligation stated in the Authority's final decision, it is enforceable. The Authority's decision becomes final upon communication according to Section 82(1) of the Ákr. According to Section 133 of the Ákr., enforcement is ordered by the authority that made the decision, unless otherwise provided by law or government decree. According to Section 134 of the Ákr., enforcement is carried out by the national tax authority. Based on Section 61(7) of the Infotv., the execution of the decision requiring the performance of a specific act, specific behavior, tolerance, or cessation is carried out by the Authority.

Dated: Budapest, according to the electronic signature and timestamp

Dr. habil. Attila Péterfalvi
President
Professor Emeritus